

JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Writ Petition No.2656 of 2021

*Asad Mahmood and 4 others V/S Government of Punjab through Chief
Secretary Punjab, Lahore and 20 others*

J U D G M E N T

Date of hearing	26.01.2022
Petitioner(s) by	M/s. Ch. Muhammad Nisar Ali and Muhammad Ishaq Hanjra, Advocates.
Respondent(s) by	Mr. Mujeeb-ur-Rehman Kiyani, Additional Advocate-General with Izhar-ul-Haq, Assistant Director, Environment Protection Department, Jehlum and Muhammad Aamir Shafiq, Assistant Director, Mines & Minerals, Jehlum. Malik Kamran Khursheed, Deputy Director Legal, WAPDA Mr. Tahir Malik, Deputy Attorney General and Malik Ahtesham Saleem, Assistant Attorney General of Pakistan. Syed Moazzam Ali Rizvi, Advocate for the Respondents No.7 and 8. Malik Fazal-ur-Rehman, Advocate for Respondent No.21/IESCO. Ch. Muhammad Hussain, ASC for all Private Respondents. Raja Zaheer-ud-Din Babar, ASC on Court’s call. Mr. Rashid Mehmood, Research Officer, Lahore High Court, Rawalpindi Bench.

JAWAD HASSAN, J. Through this Environmental Public Interest Litigation under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “***Constitution***”), the Petitioners have made multiple prayers challenging the establishment of Stone Crushing Unit(s) in District Jehlum without proper approval by the relevant Authorities.

I. CONTEXT

2. Brief facts of the case are that the Petitioners are permanent inhabitants of District Jhelum and have approached this Court for protection of their fundamental rights of life and health guaranteed under Articles 3 & 4 of the Constitution. Their grievance is that Respondents No.13 to 20 are running illegal business of crushing limestone without any “No Objection Certificate” from the Environmental Protection Agency. The said act/action of aforesaid Respondents is not only creating nuisance but is also causing a great inconvenience to inhabitants of the area and the travelers as well. It is agitated in the petition that due to dust and pelting stones in the thickly populated and prohibited area, the environment of the area has been badly damaged. Furthermore, the owners of the crushing plants are stealing the stones from river, which resulted into damage of road, deep cliffs, etc. Therefore, keeping in view, the facts, enquiries and survey reports mentioned in this Petition, the Respondents be directed to take strict action in accordance with the applicable law. Hence, this Petition.

II. PETITIONER’S SUBMISSIONS

3. Ch. Muhammad Nisar Ali, Advocate submitted that the Petitioners being inhabitants of District Jehlum filed this Petition against the functioning of stone crushing units run by the Respondents No.13 to 20 which is badly causing damage to the public health. He further submitted that Petitioners have filed this Petition seeking, inter alia, a writ of mandamus to the Respondents/State functionaries for the implementation of the law, policies, and for enforcement and protection of their fundamental rights guaranteed under Article 9 of the Constitution. He added that it is the fundamental right of every citizen to live in clean atmosphere and relied upon the landmark judgment of Hon’ble Supreme Court of Pakistan reported as “MS. SHEHLA ZIA AND OTHERS Versus WAPDA” (PLD 1994 SC 693). He further relied upon Suo Moto Case No.13 of 2009 (PLD 2011 SC 619) wherein it has been held that “*right to life implies the right to*

food, water, decent environment, education, medical care and shelter, thus fundamental right cannot be snatched away or waived off pursuant to any agreement”. He submitted that Hon’ble Supreme Court took *suo moto* action in NEW MURREE PROJECT (2010 SCMR 361), because of grave environmental hazards caused by destruction of 5,000 acres of forest which has adversely affecting the annual rainfall in Islamabad, with the result that the supply of water to the nearby dams was depleted. In 2010, the Supreme Court decided the case with directions that there is a need to sensitize the general public to fundamentals of sustainable development so as to achieve goal of healthy environment, not only for present population but also for the future generations. Lastly prayed that direction be issued to the Respondents to protect the inhabitants of the area from pollution of stone crushers. Learned counsel also relied on the judgments reported as “Human Rights Case No.318 of 1993” (2021 SCMR 512) and “Haji Mullah Noor Ullah v. Secretary Mines and Minerals and 3 others” (2015 YLR 2349).

III. RESPONDENTS’ SUBMISSION

i. Submissions of Mr. Mujeeb-ur-Rehman Kiyani, AAG

4. Learned Law Officer objected to the maintainability of this Petition being premature because the issue relates to the environmental pollution and falls within the ambit of Environmental Protection Agency (**EPA**), which functions under the Pakistan Environmental Protection Act, 1997 (the “**Act**”). He also stated that the Petitioner has no locus standi to file this petition.

ii. Submissions of Izhar-ul-Haq, Assistant Director, Environment Protection Department, Jehlum

5. Mr. Izhar-ul-Haq, Assistant Director by relying upon the report and parawise comments submitted that bold steps have already been taken by issuing notices to the owners of stone crushing units. Added that functional stone crushing units have been sealed hence there remains no threat to environment.

iii. Submissions of Muhammad Aamir Shafiq, Assistant Director, Mines & Minerals, Jehlum

6. Mr. Muhammad Aamir Shafiq, Assistant Director also objected to the maintainability of this Petition on the ground that the alternate remedies of filing appeal and revision under Rule 234 and 235 of the Punjab Mining Concession Rules, 2002 (the “**Rules**”) are available to the Petitioners. Added that the Deputy Commissioner, Jehlum has already constituted a Committee to stop the operation of stone crushing plants and also to stop excavation work in the mining leases of sand from Mangla Dam Main Spillway to Old Railway Bridge Jehlum.

iv. Submissions of Ch. Muhammad Hussain, Advocate for the Private Respondents.

7. Ch. Muhammad Hussain, ASC also vehemently objected to the maintainability of this Petition by stating that the Petitioners have no locus standi to file this Petition because they are not aggrieved persons. Added that the Petitioners are not residents of the area and that the stone crushing units are not functioning in the populated area, therefore, no fundamental right of the Petitioners has been infringed. Further submitted that the Respondents had been crushing stones in their own property. Learned counsel further stated that freedom of trade and ease of doing business is a fundamental right of every citizen including the private Respondents, which is guaranteed under the Constitution. He relied on the judgment of this Court cited as “M.C.R. (Pvt) Ltd, franchisee of Pizza Hut v. Multan Development Authority and others” (2021 CLD 639). The relevant part of the judgment is reproduced as under:

“28. Undoubtedly freedom of trade, business and commerce is a fundamental right guaranteed under Article 18 of the Constitution which states that every citizen shall have the right to enter upon any lawful profession or occupation, and to conduct any lawful trade or business. One of the basic purposes behind

provision of this fundamental right is certainly to advance culture of socio-economic progress and to protect and promote business and trade activities and, at the same time, to encourage simplification of the process of establishing and carrying out new business ventures throughout the country because activities of business and trade create opportunities for the masses around and provide job options, financial stability and progress in the area.”

8. He also relied on the judgments cited as “Constructor Association of Pakistan through Secretary General v. Pakistan Engineering Council (PEC) through Chairman and another” (PLD 2020 Islamabad 199), “M. Tariq Asad, Advocate Supreme Court v. Federation of Pakistan through Federal Secretary and 6 others” (PLD 2020 Islamabad 338), “Dr .Moinuddin Shaikh v. Federation of Pakistan through Federal Secretary, Water and Power, Islamabad and 10 others” (PLD 2019 Sindh 506), “Muhammad Gul v. Government of Khyber Pakhtunkhwa through Chief Secretary and others” (PLD 2019 Peshawar 184), “Sajjad Ahmad v. Government of Khyber Pakhtunkhwa through Chief Secretary and 8 others” (2020 CLC 360) and Chenab Flour and General Mills etc. versus Federation of Pakistan through Secretary Revenue Division etc. (PLD 2021 Lahore 343).

9. Arguments heard. Record perused.

IV. DETERMINATION BY THE COURT

10. This environmental public interest petition has been filed by the Petitioners being inhabitants of District Jehlum, in order to protect their rights provided under Articles 9 (right of life and liberty) and 14 (right of dignity) of the Constitution from the pollution and nuisance created by the business of crushing limestone. The Petitioners have alleged that the crushing plants in the thickly populated area are creating nuisance and inconvenience for the inhabitants of the area and travelers and are causing damage to the environment of the area because of dust, pelting stones and pollution. While the stance of the Respondents-EPA taken in report and parawise comments is that the

department has taken steps against stone crushing units and environmental approvals of certain functional crushing units have also revoked and sealed by the Deputy Commissioner, Jhelum. The Respondents-Mines & Mineral Department objected to maintainability of this petition on account of availability of alternate remedies provided under Rule 234 and 235 of the Rules. In the report submitted by the said Department, it is stated that the Deputy Commissioner, Jhelum, has already constituted a committee to stop operation of stone crushing units and to stop excavation work in the mining leases of sand from Mangla Dam Main Spillway to Old Railway Bridge, Jhelum. Whereas the Respondents No.13 to 20 have taken specific stance that stone crushing units are installed which far away from the residential area as such the Petitioners have neither locus-standi to file this petition; nor they are aggrieved persons and their fundamental rights, as alleged, have been infringed.

Locus standi of the Petitioners

11. Primarily, the Petitioners have invoked constitutional jurisdiction of this Court due to violation of their fundamental rights guaranteed under the Constitution. It is observed that in order to invoke constitutional jurisdiction of this Court, the Petitioners have to satisfy that they have locus standi being aggrieved persons as their rights were denied or were not given to them and also they have no alternate, adequate remedy of redressal of their grievance. The Petitioners have alleged that crushing plants in the thickly populated area are creating nuisance and inconvenience for the inhabitants of the area and travelers and are causing damage to the environment of the area because of dust, pelting stones and pollution. It evinces from the record that the Petitioners have only appended with this petition a decision of Ombudsman, Punjab dated 10.04.2021 according to which the Petitioners are not party to the proceedings. They have also annexed decision dated 20.02.2020 given by the office of District Magistrate, Mir Pur, which is also not related to the residential area of the Petitioners. Record further depicts that the Petitioners are the

residents of District Jhelum while through C.M.No.2440 of 2021, they have annexed some photographs of dumping of stones and sand of some non-residential area are not cleared as to which area these photographs are related to.

12. Perusal of record reveals that the issue involved in this case relates to Mines and Mineral Department regarding granting of license for installing crushing units and that too is subject to approval of Environmental Protection Department. Under Rule 191 of the Rules of 2002, a lease is granted in accordance with the Rules of 2002 through an open auction conducted by a committee constituted under Rule 194 of the Rules which comprises representatives of Irrigation Department, Environmental Protection Department, Inspectorate of Mines and Forest Department. Moreover, a lease granted to successful bidder is also subject to approval by the environmental protection agency under the provisions of Environmental Protection Act, 1997 (the “*Act*”) which has been enacted “*to provide for the protection, conservation, rehabilitation and improvement of the environment, prevention and control of pollution, promotion of sustainable development and for matters connected therewith and incidental thereto*” (Preamble). The Act has defined the “environment” and “pollution” as follows:

“(x) “*environment*” means—

- (a) *air, water and land;*
- (b) *all layers of the atmosphere;*
- (c) *all organic and inorganic matter and living organisms;*
- (d) *the ecosystem and ecological relationships;*
- (e) *buildings, structures, roads, facilities and works;*
- (f) *all social and economic conditions affecting community life; and*
- (g) *the inter-relationships between any of the factors in sub-clauses (a) to (f);*

(xxxiii) “*pollution*” means *the contamination of air, land or water by the*

discharge or emission of effluents or wastes or air pollutants or noise or other matter which either directly or indirectly or in combination with other discharges or substances alters unfavourably the chemical, physical, biological, radiational, thermal or radiological or aesthetic properties of the air, land or water or which may, or is likely to make the air, land or water unclean, noxious or impure or injurious, disagreeable or detrimental to the health, safety, welfare or property of persons or harmful to biodiversity;”

13. Before passing any determination on the issue in hand, the Court consider it necessary, shorn of all legal niceties, to discuss the scheme and mechanism of the Act, including the environmental approvals under the Act, the responsibilities of the environmental authorities under the Act and remedies available under the Act.

Framing of Environmental Laws

14. If we look at the scheme and mechanism of the Act, Section 11 of the Act prohibits discharge or emission of any effluent, waste, air pollutant or noise in excess of the Punjab Environmental Quality Standards or, where applicable, in excess of the standards for the quality of ambient air, water and land established under Section 6(1)(g)(i). Section 13 of the Act prohibits import of hazardous waste into Pakistan; Section 14 of the Act requires a person to obtain a license to generate, collect, consign, transport, treat, dispose of, store, handle or import any hazardous substance; and Section 15 of the Act regulates motor vehicles from which air pollutants or noise are being emitted in an amount, concentration or level in excess of the Punjab Environmental Quality Standards or where applicable, standards established under Section 6(1)(g) of the Act.

VI. WHETHER MANDATORY REQUIREMENT OF PRIOR PERMISSION HAS BEEN MET WITH?

15. In addition to above prohibitions and regulations, Section 12(1) of the Act requires any proponent of a project to file with the

Environmental Protection Agency (the “**Agency**”) an Initial Environmental Examination (“**IEE**”) or where the project is likely to cause an adverse environmental effect, an Environmental Impact Assessment (“**EIA**”), before commencing construction or operation of such project and to obtain respective approval in this respect. The Act has defined the above-underlined terms in its Section 2 as follows:

(i) “adverse environmental effect” means impairment of, or damage to, the environment and includes—

(a) impairment of, or damage to, human health and safety or to biodiversity or property;

(b) pollution; and

(c) any adverse environmental effect as may be specified in the regulations;

(xi) “environmental impact assessment” means an environmental study comprising collection of data, prediction of qualitative and quantitative impacts, comparison of alternatives, evaluation of preventive, mitigatory and compensatory measures, formulation of environmental management and training plans and monitoring arrangements, and framing of recommendations and such other components as may be prescribed;

(xxiv) “initial environmental examination” means a preliminary environmental review of the reasonably foreseeable qualitative and quantitative impacts on the environment of a proposed project to determine whether it is likely to cause an adverse environmental effect for requiring preparation of an environmental impact assessment;

(xxv) “project” means any activity, plan, scheme, proposal or undertaking involving any change in the environment and includes—

(a) construction by use of buildings or other works;

(b) construction or use of roads or other transport systems;

- (c) construction or operation of factories or other installations;
- (d) mineral prospecting, mining, quarrying, stone-crushing, drilling and the like;
- (e) any change of land use or water use; and
- (f) alteration, expansion, repair, decommissioning or abandonment of existing buildings or other works, roads or other transport systems, factories or other installations;

(xxxvi) “proponent” means the person who proposes or intends to undertake a project;

16. Under Section 12(2) of the Act, the Agency is required to review IEE and accord its approval, or require submission of an EIA by the proponent; or review EIA and accord its approval subject to any conditions, or require that EIA be re-submitted after modifications, or reject the project as being contrary to environmental objectives. In addition, under Section 12(3) of the Act, every review of EIA has to be carried out with public participation. Under Section 12(4) of the Act, the Agency is required to communicate its approval or otherwise within a period of four months from the date IEE or EIA is filed complete in all respects in accordance with the prescribed procedure, failing which IEE or EIA shall be deemed to have been approved, to the extent to which it does not contravene the provisions of the Act and the rules and regulations made thereunder. However, under Section 12(5) of the Act, the Provincial Government is authorized to extend this period of four months in particular cases if the nature of the project so warrants.

17. In addition to above, the Environmental Protection Agency Review of Initial Environmental Examination and Environmental Impact Assessment Regulations, 2000 (the “**Regulations**”) provides a list of the project requiring IEE in its Schedule I and the list of the project requiring EIA in its Schedule II. Schedule I of the Regulations provides the following projects for IEE approval:

“D. Mining and mineral processing

- 1. Commercial extraction of sand, gravel, limestone, clay, sulphur and other minerals not included in Schedule II with total cost of less than Rs.100 million*
- 2. Crushing, grinding and separation processes*
- 3. Smelting plants with total cost of less than Rs.50 million”*

Similarly, Schedule II of the Regulations provides the following projects for EIA approvals:

“C. Mining and mineral processing

- 1. Mining and processing of coal, gold, copper, sulphur and precious stones*
- 2. Mining and processing of major non-ferrous metals, iron and steel rolling*
- 3. Smelting plants with total cost of Rs.50 million and above”*

18. In view of the above, any natural or legal person who proposes or intends to undertake a project, including the stone-crushing, is required to obtain IEE approval, which is a preliminary environmental review of the reasonably foreseeable qualitative and quantitative impacts on the environment of a proposed project to determine whether it is likely to cause an adverse environmental effect for requiring preparation of an environmental impact assessment. However, if such a project is likely to cause an adverse environmental effect, which includes pollution as well as the impairment of or damage to environment, human health, safety, biodiversity or property, or falls under Schedule II of the IEE/EIA Regulations, such person is required to obtain EIA approval, which is environmental study comprising collection of data, prediction of qualitative and quantitative impacts, comparison of alternatives, evaluation of preventive, mitigatory and compensatory measures, formulation of environmental management and training plans and monitoring arrangements, and framing of recommendations and such other

components as may be prescribed. Accordingly, the businesses of crushing limestone or allied projects have to obtain these approvals in accordance with the above-listed requirements of law.

Responsibilities of the Environmental Authorities

19. The Punjab Environmental Protection Council (the “**Council**”) has been established under Section 3 of the Act and its functions and powers have been listed in Section 4 of the Act. The Council coordinates and supervises enforcement of the provisions of the Act; approves comprehensive national environmental policies and ensure their implementation within the framework of a national conservation strategy approved by the Punjab Government; approves the Punjab Environmental Quality Standards; provides guidelines for protection and conservation of species, habitats, and biodiversity in general, and for the conservation of renewable and non-renewable resources; coordinates integration of the principles and concerns of sustainable development into national development plans and policies; and considers the Punjab Environment Report and gives appropriate directions thereon. Under Section 4(2) of the Act, the Council has power to direct the Agency or any Government Agency to prepare, submit, promote or implement projects for the protection, conservation, rehabilitation and improvement of the environment, the prevention and control of pollution, and the sustainable development of resources, or to undertake research in any specified aspect of environment.

20. On the other hand, the Provincial Environmental Protection Agency (the “**Agency**”) has been established under Section 5 of the Act and its functions have been listed in Section 6 of the Act. The Agency has functions, among others, to administer and implement the provisions of the Act and the rules and regulations; take all necessary measures for the implementation of the environmental policies approved by the Council; prepare and publish an annual Punjab Environment Report on the state of the environment; prepare or revise, and establish the Punjab Environmental Quality Standards with

approval of the Council after seeking public opinion in accordance with the prescribed procedure; ensure enforcement of the Punjab Environmental Quality Standards; establish standards for the quality of the ambient air, water and land; co-ordinate environmental policies and programmes nationally and internationally; establish systems and procedures for surveys, surveillance, monitoring, measurement, examination, investigation, research, inspection and audit to prevent and control pollution; and to take all necessary measure for the protection, conservation, rehabilitation and improvement of the environment, prevention and control of pollution and promotion of sustainable development.

21. In performance of its functions, the Agency has been specifically empowered under Section 6(2)(a) & (b) of the Act, to undertake inquires or investigation into environmental issues, either of its own accord or upon complaint from any person or organization, and to request any person to furnish any information or data relevant to its functions. Similarly, under Section 7(f) to (i) of the Act, the Agency has power to summon and enforce the attendance of any person and require him to supply any information or document needed for the conduct of any enquiry or investigation into any environmental issue; enter and inspect, subject to restrictions, any land, building, premises, vehicle or vessel or other place where or in which, there are reasonable grounds to believe that an offence under the Act has been or is being committed; and take samples of any materials, products, articles or substances or of the effluents, wastes or air pollutants being discharged or emitted or of air, water or land in the vicinity of the discharge or emission; and arrange for test and analysis of the samples at a certified laboratory.

22. Section 16 of the Act has empowered the Agency to issue the Environmental Protection Orders (“EPOs”) where the Agency is satisfied that the discharge or emission of any effluent, waste, air pollutant or noise, or any other act or omission (a) is likely to occur,

or is occurring, or has occurred, in violation of any provision of the Act, rules or regulations or of the conditions of a license, or (b) is likely to cause, or is causing, or has caused an adverse environmental effect. However, before issuance of EPO, the Agency has to provide the person responsible for such act or omission, an opportunity of hearing. In an EPO, the Agency is authorized to direct such person responsible to take necessary measures within a specific period, including (a) immediate stoppage, preventing, lessening or controlling the discharge, emission, disposal, handling, act or omission, or to minimize or remedy the adverse environmental effect; (b) installation, replacement or alteration of any equipment or thing to eliminate or control or abate on a permanent or temporary basis, such discharge, emission, disposal, handling, act or omission; (c) action to remove or otherwise dispose of the effluent, waste, air pollutant, noise, or hazardous substances; and (d) action to restore the environment to the condition existing prior to such discharge, disposal, handling, act or omission, or as close to such condition as may be reasonable in the circumstances, to the satisfaction of the Agency. If such person does not comply with the directions in EPO, the Agency is authorized to initiate proceedings against him under the Act or the rules and regulations, or to itself take the necessary measures specified in EPO and recover costs of those measures from such person as arrears of land revenue.

VII. WHETHER THE PETITIONERS HAVE AVAILED REMEDIES PROVIDED UNDER THE LAW

Environmental Remedies

(a) Environmental Tribunal

23. Learned Law Officer and learned counsel for the Respondents have pointed out that this petition is not maintainable in presence of remedies available under the *Act* and the *Rules* and also the Petitioners have no locus standi to file this petition. Section 20 of the Act establishes the Environmental Tribunal and Sections 21 & 22 of the

Act provides their jurisdiction and powers. All contraventions punishable under Section 17(1) of the Act are exclusively tried by the Tribunal, which includes violations concerning certain discharges or emissions (Section 11), IEE and EIA provisions (Section 12), import of hazardous waste (Section 13) and EPOs (Section 16). Under Section 21(3) of the Act, the Tribunal is required to take cognizance of any offence on complaint in writing by the Agency, any government body, local council as well as complaint by an aggrieved person, who has served a notice of at least thirty days to the Agency of the alleged contravention and his intention to make a complaint to the Tribunal. Similarly, under Section 22 of the Act, any person aggrieved by any order or direction of the Agency under any provision of the Act and rules or regulations made thereunder, may prefer an appeal to the Tribunal within thirty days of the date of its communication to such person. In addition, under Section 23 of the Act, any person aggrieved by any “final order” or sentence of the Tribunal, may prefer an appeal to the Lahore High Court within thirty days of communication of such order or sentence, which is heard by the Division Bench of the Lahore High Court.

24. Under Section 21(4) to (6) of the Act, the Tribunal has been empowered to exercise their jurisdiction and follow the procedure under the Code of Criminal Procedure, 1898 and the Code of Civil Procedure, 1908. In addition, under Section 21(7) of the Act, the Tribunal is also authorized to issue bailable warrants for arrest of any person against whom reasonable suspicion exists of his having been involved in contravention punishable under jurisdiction of the Tribunal. However, such order must be passed on application filed by any officer duly authorized by the Director General of the Agency and the person is required to be released on a bond with sufficient sureties in accordance with the provisions of the Code of Criminal Procedure, 1898. Under Section 21(8) and (9) of the Act, the proceedings before the Tribunal are deemed to be “judicial proceedings” and no court is required to exercise jurisdiction with respect to any matter to which

the jurisdiction of the Tribunal extends. Lastly, under Section 21(10) of the Act, if the Tribunal is satisfied that a complaint made to it is false and vexatious to the knowledge of the complainant, the Tribunal may direct the complainant to pay to the person complained against compensatory costs.

(b) Environmental Magistrates

25. On the other hand, Section 24 provides jurisdiction of the Environmental Magistrates. All contraventions punishable under Section 17(2) are exclusively tried by a Judicial Magistrate of First Class, especially empowered as the Environmental Magistrate, which include violation concerning handling of hazardous substances (Section 14), regulations of motor vehicles (Section 15), any rule or regulation, condition of any license, or any order or direction issued by the Council or the Agency. These Magistrates cannot take cognizance of an offence except on a complaint in writing by the Provincial Agency, or any Government Agency or local council; and any aggrieved person. Under Section 25 of the Act, any person convicted of any contravention by an Environmental Magistrate may appeal to the Court of Sessions within thirty days of from the date of his conviction, whose decision thereon shall be final.

VIII. WHETHER THIS COURT HAS JURISDICTION IN PRESENCE OF ALTERNATE REMEDIES AVAILABLE TO THE PETITIONERS

26. The record reflects that the question of jurisdiction has also been agitated by the counsel of the Respondents. Therefore, prior to taking cognizance of a matter, this Courts deems it appropriate to determine the question of its jurisdiction after considering the environmental remedies available under the Act, because any order passed without jurisdiction cannot be allowed to hold the field under the law.

27. At this stage, it is essential to reiterate that the Agency has been specifically empowered under Section 6(2)(a) & (b) of the Act, to undertake inquires or investigation into environmental issues, either

of its own accord or upon **complaint from any person or organization**, and to request any person to furnish any information or data relevant to its functions. Similarly, under Section 7(f) to (i) of the Act, the Agency has powers to summon and enforce the attendance of any person and require him to supply any information or document needed for the conduct of any enquiry or investigation into any environmental issue; enter and inspect, subject to restrictions, any land, building, premises, vehicle or vessel or other place where or in which, there are reasonable grounds to believe that an offence under the Act has been or is being committed; and take samples of any materials, products, articles or substances or of the effluents, wastes or air pollutants being discharged or emitted or of air, water or land in the vicinity of the discharge or emission; and arrange for test and analysis of the samples at a certified laboratory. In this regard, Section 16 of the Act has empowered the Agency to issue EPOs, after fulfilling the above requirements of the law, to direct such person responsible to take necessary measures, including (a) immediate stoppage, preventing, lessening or controlling the discharge, emission, disposal, handling, act or omission, or to minimize or remedy the adverse environmental effect; (b) installation, replacement or alteration of any equipment or thing to eliminate or control or abate on a permanent or temporary basis, such discharge, emission, disposal, handling, act or omission; (c) action to remove or otherwise dispose of the effluent, waste, air pollutant, noise, or hazardous substances; and (d) action to restore the environment to the condition existing prior to such discharge, disposal, handling, act or omission, or as close to such condition as may be reasonable in the circumstances, to the satisfaction of the Agency. If such person does not comply with the directions in EPO, the Agency is authorized to initiate proceedings against him under the Act or the rules and regulations, or to itself take the necessary measures specified in EPO and recover costs of those measures from such person as arrears of land revenue.

28. It has also been noted above that all contraventions concerning certain discharges or emissions (Section 11), IEE and EIA provisions (Section 12) and EPOs (Section 16) are exclusively tried by the Tribunal. Under Section 21(3) of the Act, the Tribunal is required to take cognizance of any offence on, amongst others, complaint in writing by complaint by an aggrieved person, who has served a notice of at least thirty days to the Agency of the alleged contravention and his intention to make a complaint to the Tribunal. It is essential to highlight that the aggrieved persons also have remedy to approach the Tribunal for contravention of Sections 11, 12 and 16 after serving a notice of at least thirty days to the Agency of the alleged environmental contravention of the stone crushing business and their intention to make a complaint to the Tribunal. It is also significant to highlight Section 21(9) of the Act, which ousts jurisdiction of other courts in any matters to which the jurisdiction of the Tribunal extends. For the purpose of clarity, Section 21(9) is reproduced below:

“21. Jurisdiction and powers of Environmental Tribunals.

.....

(9) No court other than an Environmental Tribunal shall have or exercise any jurisdiction with respect to any matter to which the jurisdiction of an Environmental Tribunal extends under this Act or the rules and regulations made thereunder.”

IX CONCLUSION

29. The Petitioners, through the instant petition have invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution; therefore, they have to establish that their legal or fundamental rights guaranteed under the Constitution have been violated. Similarly, they have to prove their *locus standi* to seek direction to the Respondents in this regard under the denial of their legal rights, if any. It is *sine qua non* for initiation of proceedings under Article 199 of the Constitution that the Petitioners should have a *locus standi* to institute such proceedings or in other words the

Petitioners should be an aggrieved party from the action of the Respondents. Pivotal judgment of the apex Court on this issue is “MIAN FAZAL DIN Versus LAHORE IMPROVEMENT TRUST, LAHORE” (PLD 1969 SC 223) and the Lahore High Court titled “MONTGOMERY FLOUR AND GENERAL MILLS LTD., MONTGOMERY Versus DIRECTOR, FOOD PURCHASES, WEST PAKISTAN etc. (PLD 1957 (W.P) Lahore 914) wherein it was observed that for a person to have *locus standi* to initiate a petition for issuance of writ, he must have some right in the matter and he need not have a right in that strict sense of the term which is provided in Article 170 of the Constitution. In the case titled “DR. IMRAN KHATTAK and another Versus MS. SOFIA WAQAR KHATTAK, PSO TO CHIEF JUSTICE and others (2014 SCMR 122) the Hon’ble Supreme Court of Pakistan held as follows:

“It would exercise such jurisdiction under Article 199(1)(a)(i), (ii) and (c) on the application of an aggrieved person while under 199(1)(b)(i) & (ii) on the application of any person whether aggrieved or not, and not on an information or on its own knowledge. In the case of "Tariq Transport Company, Lahore v. Sargodha Bhera Bus Service and others" (PLD 1958 SC (Pak) 437), this Court held that a High Court was not competent merely on an information or on its own knowledge to commence certiorari proceedings or other proceedings of a similar nature under Article 170 of the Constitution of Islamic Republic of Pakistan, 1956. In the case of "Fazl-e-Haq, Accountant General, West Pakistan v. The State" (PLD 1960 SC (Pak) 295), this Court reiterated the view by holding that the extraordinary jurisdiction relating to a writ could only be exercised by the High Court when moved by a party whose legal rights have been denied”

30. Moreover, in “HAFIZ HAMADULLAH Versus SAIFULLAH KHAN and others” (PLD 2007 SC 52) the apex Court held as follows:

“With regard to the first objection it may be noted that under Article 199(1)(a) of the Constitutional jurisdiction of the High Court can be invoked by an

aggrieved person which denotes a person who has suffered a legal grievance, against whom a decision has been pronounced which has wrongfully deprived him or wrongfully refused him something which he was legally entitled to. It is also the requirement that the person invoking the constitutional jurisdiction under Article 199 of the Constitution has to establish that any of his legal or fundamental right guaranteed under the Constitution has been violated resulting in legal loss”

31. Further, in “N.W.F.P. PUBLIC SERVICE COMMISSION and others Versus MUHAMMAD ARIF and others” (2011 SCMR 848) it was observed as follows:

“The right which is the foundation of an application under Article 199 of the Constitution is a personal and individual right. The legal right may be a statutory right or a right recognized by the law. A person can be said to be aggrieved only when a person is denied a legal right by someone who has a legal duty to perform relating to the right. There must not only be a right but a justiciable' right in existence, to give jurisdiction to the High Court in the matter. Unless whatever right personal or otherwise, on which the application is based is established, no order can be issued under Art.199.”

32. In view of the above judgments of Hon’ble Supreme Court of Pakistan and from the facts of the case, it is evident that the Petitioners are not aggrieved of impugned auction and in order to prove their locus-standi they should have challenged any orders passed against them. Hon’ble Mr. Justice (R) Fazal Karim in his book **“Judicial Review of Public Actions”** has elaborated the distinction between **“Aggrieved Party”** and **“Aggrieved Person”** at page-977 Volume-2 which reads as follows:

“Distinction between “Aggrieved Party” and “Aggrieved Person”

It will be noticed that sub-clause (a) of clause (1) of Article 199 of the Constitution uses the expression “aggrieved party” while sub-clause (c) of clause (1) of that Article uses the expression “aggrieved person”. On general principle, when the Legislature uses two different expressions, the intention is to convey different meanings. The word “party” can assume

importance in cases in which there had been proceedings under the relevant statute to which the applicant under Article 199 was not a party, as it did in *Haji Adam v. Settlement and Rehabilitation Commissioner*. But the word “party” as used in Article 199, clause (1)(a) means one who is competent to maintain an action, and a person not a Party to the proceeding under the relevant statute, can seek relief under Article 199, if he shows that the decision is directed against him or his property in the sense that the enforcement of the decision would involve special, immediate and in its effect a direct injury to his interest.” (**Tariq Transport Company Case- PLD 1958 SC (Pak) 437**).

Similarly at page-980 of the “Judicial Review of Public Actions”

Locus Standi is elucidated in the following terms:

“Locus Standi is a Question for Decision, not of Discretion.

The question whether an applicant is or is not an aggrieved party or person within the meaning of Article 199 is not a matter in the discretion of the Court. “The matter is one for decision, a mixed decision of fact and law, which the Court must decide on legal principles” (Lord Wilberforce in IRC v. Fed of Self Employed (1981) 2 All ER 93).

Object of this Provision

The right to be satisfied about the applicant’s locus standi, said Lord Scarman in IRC v. Fed. Of Self Employed [(1981)2 All ER 93] enables the Court to prevent abuse by busy bodies, cranks and other mischief-makers. It is as Lord Wilberforce said in the same case, an important safeguard against the Court being flooded and public bodies harassed by irresponsible applications.”

33. It remains clear from the above pronouncements that a specific remedy under Rules 234 and 235 of the Rules of 2002 and Section 12 of the Act is available to the Petitioner but instead of availing the same, the Petitioners have filed this petition. While dealing with the question of maintainability of a petition before this Court in the wake of an alternate efficacious remedy available to a litigant, the Hon’ble Supreme Court of Pakistan in judgments reported as “INDUS TRADING AND CONTRACTING COMPANY Versus COLLECTOR

OF CUSTOMS (Preventive) Karachi and others” (2016 SCMR 842),
“DR. SHER AFGAN KHAN NIAZI Versus ALI S. HABIB and others”
(2011 SCMR 1813) and “MUHAMMAD ABBASI Versus S.H.O.
Bhara Kahu and 7 others” (PLD 2010 SC 969) has held that in the
wake of availability of an alternate efficacious remedy, jurisdiction of
this Court under Article 199 of the Constitution cannot be invoked.

34. In view of above, this petition is disposed of with direction to
the Petitioners to approach the concerned authorities for redressal of
their grievance. The Respondents concerned shall redress the
grievance of the Petitioners, in accordance with law.

(JAWAD HASSAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

Usman*